

LAW AND MOTION TENTATIVE RULINGS

DATE: JULY 22, 2026 TIME: 8:30 A.M.

TENTATIVE RULINGS ARE NOT POSTED IN UNLAWFUL DETAINER CASES

Notice to prevailing parties: Local Rule 2.10.01 requires you to submit a proposed formal order incorporating, verbatim, the language of any tentative ruling – or attaching and incorporating the tentative by reference - or an order consistent with the announced ruling of the Court, in accordance with California Rule of Court 3.1312. **Such proposed order is required even if the prevailing party submitted a proposed order prior to the hearing with two exceptions: (1) in unopposed matters where the moving party has provided a detailed proposed order or JCC form of order, or (2) where the tentative is simply to “grant”.** Failure to comply with Local Rule 2.10.01 may result in the imposition of sanctions following an order to show cause hearing, if a proposed order is not timely filed.

No. 25CV01877

ROTTICCI v. RITZMAN

(UNOPPOSED) PLAINTIFFS’ MOTION TO COMPEL RESPONSES TO POST-JUDGMENT INTERROGATORIES; REQUEST FOR POST-JUDGMENT PRODUCTION OF DOCUMENTS AND FOR SANCTIONS

Plaintiffs’ unopposed motion is granted as discussed below.

On December 18, 2025, plaintiffs served defendant Ritzman (“defendant”) with post-judgment interrogatories and post-judgment request for production of documents. (Decl. of Williamson at Ex. 1, 2.) The deadline for responding was extended to March 1, 2026. (Decl. of Williamson at ¶ 5.) Counsel for plaintiffs and defendant corresponded past March 1, but defendant did not respond to the discovery requests. Plaintiff requests that the Court order defendant to respond to the discovery and to impose monetary sanctions in the amount of \$3,024.46.

“If a party to whom interrogatories were directed fails to serve a timely response, the propounding party may move for an order compelling responses and for a monetary sanction. “Further, “[a]ll that need be shown in the moving papers is that a set of interrogatories was properly served on opposing party, that the time to respond has expired, and that no responses of any kind has been served.” (Weil & Brown *Civ. Pro. Before Trial* (TRG 2025) § 8:1140; Code Civ. Pro. § 2030.290, subd. (b).) “The court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a response to interrogatories, unless it finds that the one

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subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc. § 2030.290, subd. (c).)

“Where there has been no timely response to a CCP §2031.010 demand, the first thing the demanding party must do is to seek an ordering compelling a response. [CCP §2031.300].” (Weil Brown *Civil Procedure Before Trial* (TRG 2025) § 8:1483.) Failure to respond timely waives all objections. “If a motion to compel responses is filed and a party properly asks for monetary sanctions, the court ‘shall’ impose a monetary sanction against the losing party *unless* it finds that party made or opposed the motion ‘with substantial justification’ or other reasons make the sanction ‘unjust.’” (Weil & Brown *Civ. Pro. Before Trial* (TRG 2025) § 8:1488.)

Plaintiffs demonstrated they served discovery requests on December 18, 2025. Defendant failed to respond to the requests and did not oppose the motion. Defendant is ordered to serve verified code-compliant responses to post-judgment interrogatories and post-judgment requests for production of documents attached as exhibits 1 and 2 to the Declaration of Williamson, within 20 days of the date of the hearing. Objections are waived.

Plaintiffs request sanctions in the amount of \$2,944.50 (reduced by plaintiffs from \$3,934.50) in attorneys’ fees, plus \$79.96 in costs. The Court awards reasonable monetary sanctions in the amount of \$1,500.00, plus \$79.96 in costs, pursuant to Code of Civil Procedure sections 2030.290, subd. (c) and 2031.300, subd. (c), against defendant. Sanctions shall be paid no later than August 11, 2026.

No. 26CV00214

ARCE v. COUNTY OF SANTA CRUZ

**PETITIONER’S MOTION FOR LEAVE TO FILE SECOND AMENDED
PETITION FOR WRIT OF MANDATE**

Petitioner’s motion is granted in part. Petitioner may file an amended petition that concisely, in ordinary and plain language, describes the alleged violations of the California Public Records Act (“CPRA”) related to his single request. Petitioner shall not attach any exhibits other than his request; all other evidence he believes is related to County’s alleged violations of the CPRA may be incorporated into later briefing on the issues. Any such amendment shall be filed no later than August 7, 2026.

Self-represented petitioner Archer Arce filed a petition for writ of mandate to compel his employer, County of Santa Cruz, to produce documents pursuant to his CPRA requests. He seeks six categories of records dated January 1, 2024 through the date of search regarding a directive